

Court No. - 5

Case :- WRIT - C No. - 38300 of 2018

Petitioner :- Consortium Of Societies Ghaziabad And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Saroj Kumar Yadav

Counsel for Respondent :- C.S.C., Amrendra Nath Singh

Hon'ble Pradeep Kumar Singh Baghel, J.

Hon'ble Salil Kumar Rai, J.

Issue notice to the learned Advocate General.

The petitioner has challenged ultra vires of Clause 4.9 of the Uttar Pradesh Electricity Supply Code 2005 notified by the Uttar Pradesh Regulatory Commission dated 10th August, 2018.

It is contended by learned counsel for the petitioners that by the impugned notification, multiple point has been provided which is contrary to the statutory provision. He has brought the attention of the Court to the Electricity (Removal of Difficulties) (Eighth) Order, 2005.

The matter requires consideration.

Learned Standing Counsel has accepted notice on behalf of the State functionaries. Sri A.N.Singh has accepted notice on behalf of the respondents no. 2 and 3.

All the respondents may file counter affidavit within a period of six weeks. Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List in week commencing 7th January, 2019.

Order Date :- 22.11.2018

Pratima

Court No. - 21

Case :- WRIT - C No. - 38300 of 2018

Petitioner :- Consortium Of Societies Ghaziabad And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Saroj Kumar Yadav

Counsel for Respondent :- C.S.C., Amrendra Nath Singh

Hon'ble Pradeep Kumar Singh Baghel, J.

Hon'ble Pankaj Bhatia, J.

Learned counsel for the respondent is again seeking time accordingly. In the meantime, we grant permission to the learned counsel for the petitioner to move an application for extension of time before the Competent Authority in terms of the Electricity Supply Code (Thirteen Amendment), 2018 Clause 4.9.

Put up this case on 11th April 2019 in the additional cause list.

Order Date :- 5.3.2019

M. ARIF

Court No. - 21

Case :- WRIT - C No. - 38300 of 2018

Petitioner :- Consortium Of Societies Ghaziabad And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Saroj Kumar Yadav

Counsel for Respondent :- C.S.C.,Amrendra Nath Singh

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

For orders, order of date passed on Writ-C No. 4545 of 2019.

Order Date :- 1.4.2019

MAA/-

Court No. - 32

Case :- WRIT - C No. - 38300 of 2018

Petitioner :- Consortium Of Societies Ghaziabad And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Saroj Kumar Yadav

Counsel for Respondent :- C.S.C.,Amrendra Nath Singh

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

For order, see our order of date passed in leading Writ-C No. 4545 of 2019.

Order Date :- 11.4.2019

SY

Court No. - 29

Case :- WRIT - C No. - 38300 of 2018

Petitioner :- Consortium Of Societies Ghaziabad And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Saroj Kumar Yadav

Counsel for Respondent :- C.S.C.,Amrendra Nath Singh

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

As prayed list on 3rd week of August 2019.

Stay order is extended till the next listing.

Order Date :- 30.7.2019

SKS